

Legal Counsel Update: April 23, 2026

1:30 p.m. – Board of Commissioners Conference Room

Attending: Commissioners Ron Smith, Colene Martin and Gary Richardson; Wally Hicks, Legal Counsel; Kassie Austin, Recorder

1. Declaration of Potential Conflicts of Interest

The Josephine County Board of Commissioners reviewed today's agenda and determined there were no potential conflicts of interest.

2. Administrative Policy H-03; News Media Meeting Attendance Policy

Wally Hicks, County Legal Counsel, provided a draft of the previously approved News Media Policy. Ms. Martin recommended only reviewing the media registration aspect of the policy. Mr. Richardson provided his recommendations. Mr. Richardson and Ms. Martin agreed that the county does not have the authority enforce the executive session laws. Mr. Hicks informed the board that Josephine County does have the authority per Josephine County Code Section 2.05. Mr. Richardson brought up concerns about not allowing media to attend executive sessions virtually. Mr. Hicks will provide a memo to the board addressing this matter.

3. 2025 Budget Officer Contract

Commissioner Richardson gave an update regarding the letter that was sent to the previous budget officer on March 25, 2026. The individual did not respond within the deadline. Commissioner Richardson recommended that a demand letter, through registered mail, demanding payment. Mr. Hicks stated that he has spoken to the previous contractor, and he stated that the contractor does not intend to pay the county back for services that were not rendered. Commissioner Richardson spoke regarding disbarment, and legal action. The board discussed and agreed that they feel as though the county has a strong case if they opted to move towards legal actions. The board directed legal to send a letter to the contractor stating that the county is looking to seek the reimbursement of funds.

4. Participation Agreement for the National Opioid Settlement – Six Remnant Defendants

Mr. Hicks gave the history of the National Opioid Settlements. The board discussed the ways that the money can be spent. The counsel that has been representing all Oregon Counties in this case recommend that the counties pursue this matter. If Josephine County participates in this matter Josephine County could receive 2.4% of an estimated 97 million dollars. The money is outlined on school outreach officers, and outsourcing drug and alcohol treatments. The board approved participating in the settlement without objection.

5. Consideration of Approval of Accredited Representatives of the News Media

Mr. Hicks stated this agenda item was placed on the agenda to see if there have been any new applications. The county has not received any new applications at this time.

Chair Ron Smith called for Executive Session at 10:32 a.m. Minutes filed separately.

Additional Attendees: Chrissy Ewald with the Daily Courier; Scott Hyde, Community Justice Director; Helene Lulich, County Real Property Manager; Dave Streeter, Forestry Director; Ryan Johnson, Facilities Director; Stephanie Watson, Paralegal

6. EXECUTIVE SESSION

- a. Oregon Board of Pharmacy – Case No. 2025-0686- ORS 192.660(2)(h)**
- b. Gabbert et al v. Josephine County et al – USDC 1:23-cv-01434-CL; Kindred, LLC v. Josephine County Case No. 24 CV60617 – ORS 192.660(2)(h)**
- c. Surplus Proceeds from Sale of tax foreclosed real property – ORS 192.660(2)(h)**

- d. **Report and Recommendation re: County Foreclosure 1999 – Powell Creek Cabin – ORS 192.660(2)(e)**
- e. **Report and Recommendation re: County Real Property located at 1798 SE N Street and 125 Ringuette Street – ORS 192.660(2)(e)**
- f. **County Real Property located at 125 and 215 Ringuette Street – ORS 192.660(2)(e)**
- g. **Communications Facility Leases; 500 NW 6th Street; 370 Bowhill Road – ORS 192.660(2)(e)**

Executive Session Adjourned at 12:28 p.m.

LEGAL UPDATE CONTINUED

7. Oregon Board of Pharmacy – Case No. 2025-0686

Mr. Hicks stated that the Oregon Board. Commissioner Martin. Seconded by Commissioner Richardson.

8. Gabbert et al v. Josephine County et al – USDC 1:23-cv-01434-CL; Kindred, LLC v. Josephine County Case No. 24CV60617

The board director staff to move forward with a settlement without objection.

9. Surplus Proceeds from Sale of tax Foreclosed Real Property

The board directed staff to move forward with a settlement without objection.

10. County Foreclosure 1999 – Powell Creek Cabin

This matter was tabled.

11. County Real Property located at 1798 SE N Street

The board requested more information and a quote for updating the facility. The board directed Helene Lulich to not move forward on the HP contract.

12. Communication Facility Leases; 500 NW 6th Street; 370 Bowhill Road

The board directed facilities director to communicate on behalf of the county. They would like to let the leases term out, and the equipment off of county property as soon as possible.

13. Other:

Commissioner Richardson brought forward the possibility of an ordinance change regarding executive session. He does not like the restrictive nature as how the code is currently written.

14. Additional Subject Matters from Commissioners/Announcements

None heard.

Meeting adjourned at 12:34 p.m.